

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Purchased:

-----X
ERNESTO RODRIGO,

Plaintiff designates
BRONX County as the place of trial

Plaintiff,

-against-

The basis of the venue is where the
the tort arose and plaintiff resides.

THE CITY OF NEW YORK, MOISES RODRIGUEZ
P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164,
OTHER CITY OF NEW YORK POLICE OFFICERS
INVOLVED IN ARREST #B17654809 WHOSE NAMES
ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON OCTOBER 26, 2017,
AND NO OTHER DATE,

SUMMONS

Plaintiff resides at

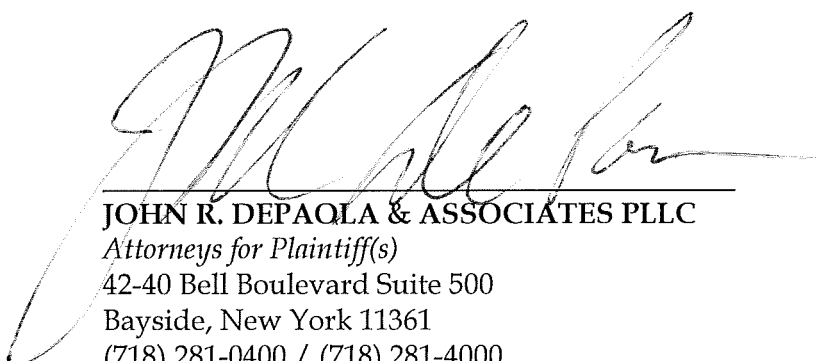
ERNESTO RODRIGO
2247 Webster Avenue
Bronx, New York 10457

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered to you within the State
of New York); and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
August 8, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

MOISES RODRIGUEZ P.O. OF THE 46 PCT.

SHIELD #8124, TAX ID #951164

2120 Ryer Avenue
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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ERNESTO RODRIGO,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, MOISES RODRIGUEZ
P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164,
OTHER CITY OF NEW YORK POLICE OFFICERS
INVOLVED IN ARREST #B17654809 WHOSE NAMES
ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
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AND NO OTHER DATE,

Defendants.

-----X

ERNESTO RODRIGO, by his attorneys, JOHN R. DEPAOLA & ASSOCIATES

PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff ERNESTO RODRIGO was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant, CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 10th day of November, 2017 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant, CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant, CITY OF NEW YORK, of the nature, place, time and manner in which the claim

arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants, **MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17654809 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were and are police officers of the Defendant, **CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about October 26, 2017, at approximately 6:46 P.M., in the vicinity of the inside of the 46 NYPD Precinct, County of Bronx, State of New York, the Defendants, **MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17654809 WHOSE NAMES ARE NOT**

KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff, ERNESTO RODRIGO, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about October 26, 2017, at approximately 6:46 P.M., in the vicinity of the inside of the 46 NYPD Precinct, County of Bronx, State of New York, the Defendants, **MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17654809 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, jointly and severally did place Plaintiff, ERNESTO RODRIGO, in imminent fear of physical contact by approaching the Plaintiff and restraining the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about October 26, 2017, at approximately 6:46 P.M., in the vicinity of the inside of the 46 NYPD Precinct, County of Bronx, State of New York, the Defendants, **MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17654809 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then held him in police custody in the County of Bronx and there charged him with the crimes on Arrest No.: B17654809. The Plaintiff was thereafter held in custody at Bronx Central Booking over the course of two (2) days or approximately nineteen (19) hours until he was released, when Assistant District Attorney Andrew J. Lee of the Bronx District Attorney's Office declined to prosecute this matter. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. The decline to prosecute letter from the Bronx District Attorney's Office is attached herein as **Exhibit One** which demonstrates the lack of probable cause on this arrest.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.
13. On or about October 26, 2017, at approximately 6:46 P.M., in the vicinity of the inside of the 46 NYPD Precinct, County of Bronx, State of New York, the Defendants, **MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17654809 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's jail facilities, to wit a local police precinct holding cell, and to Central Booking. The Plaintiff was thereafter held in custody over the course of two (2) days or approximately nineteen (19) hours before he was released, when Assistant District Attorney Andrew J. Lee of the Bronx District Attorney's Office declined to prosecute this matter. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. The decline to prosecute letter is incorporated by reference and attached as **Exhibit One** which demonstrates the lack of probable cause the defendants had to arrest the Plaintiff.

AS AND FOR A FIFTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Defendants, **MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17654809 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
16. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
17. Plaintiff, **ERNESTO RODRIGO**, is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
18. The Defendant, **CITY OF NEW YORK**, is a municipality duly incorporated under the laws of the State of New York.
19. On or about October 26, 2017, the Defendants, while effectuating the arrest of the Plaintiff, **ERNESTO RODRIGO**, did grab the person of the Plaintiff

without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. In this instance, Plaintiff received a call from **MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164** asking him to go down to the 46 Precinct for questioning. The officer didn't offer any further explanation and told him to just show up there in the afternoon. Once the Plaintiff arrived to the 46 Precinct, he met with **MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164**, whom asked Plaintiff for his ID and immediately informed him that he was being placed under arrest. When Plaintiff asked why he was he being arrested he received no response from the officer. About an hour later the officer took him to get processed for fingerprints and when Plaintiff asked again why was he being arrested for the officer replied he would find out once he gets to Central Booking. After Plaintiff arrived at Central Booking **MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164** told Plaintiff that they were going to walk out the back door, because the charges were being dismissed, to not say anything and to just behave himself. The Plaintiff was released when Assistant District Attorney Andrew J. Lee of the Bronx District Attorney's Office decided to decline to prosecute this case due to insufficient evidence in that the facts did not rise to the level to support any criminal charges. The police officer who processed the arrest was **MOISES RODRIGUEZ P.O. OF**

THE 46 PCT., SHIELD #8124, TAX ID #951164, and along with those named as JOHN/JANE DOE I-IV assisted in the investigation that led to the arrest of the Plaintiff. The named officer grabbed the person of the Plaintiff and handcuffed him. The handcuffs were placed on Plaintiff's wrists so tight that Plaintiff's wrists turned red.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of his liberty.
 - h. Freedom from being illegally searched.
21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
22. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment. See **Exhibit One** as the decline to prosecute letter which is incorporated by reference herein as though fully set forth herein.

AS AND FOR A SIXTH CAUSE OF ACTION

23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.
24. Defendant, **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
25. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
26. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.

2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
27. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff, commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR AN SEVENTH CAUSE OF ACTION

28. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "27" as it set forth at length herein.
29. Defendant, **CITY OF NEW YORK**, was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, **MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17654809 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate

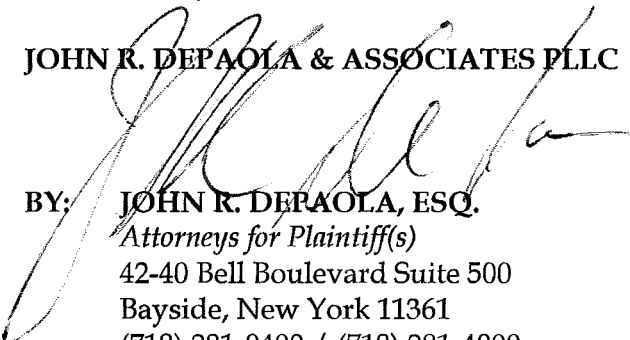
supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
August 8, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:  **JOHN R. DEPAOLA, ESQ.**
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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ERNESTO RODRIGO,

Plaintiff,

-against-

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VERIFICATION

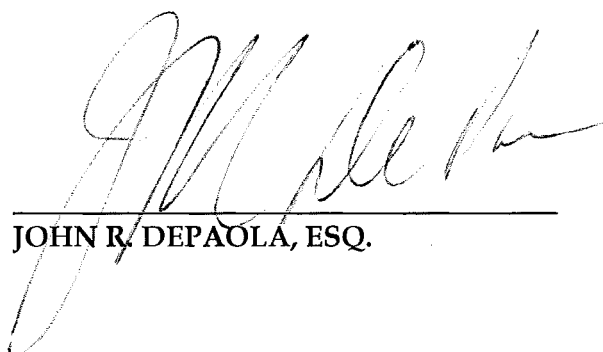
Defendants..

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I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
August 8, 2018



JOHN R. DEPAOLA, ESQ.

EXHIBIT ONE

AFFIDAVIT IN SUPPORT OF DECLINING/DEFERRING PROSECUTION

Arresting Officer's

Arrest

Name : RODRIGUEZ MOISES
Rank : PO
Shield : 08124
Command : 46 PCT
TaxID : 951164000

Arrest Date: 10/26/2017
Arrest Time: 18:46

CHARGES:

P.L. 240.30(1)(a)**

Defendants

Address

1. B17654809 ERNESTO RODRIGO

WEBSTER AVEN

Complainant's Name:

Cardona, Amanda

Category for Declining/Deferring prosecution:

The People do not have sufficient evidence to prove the defendant committed the crime(s) charged beyond a reasonable doubt.

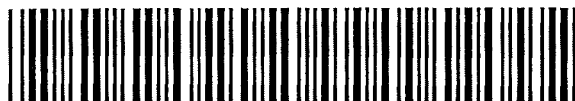
Reason(s) for declining/deferring prosecution:

The defendant and complainant are former intimate partners. There are no prior Domestic Incident Reports.

On October 21, 2017, the defendant is alleged to have sent the complainant a text message which stated, in sum and substance, I'M GRIPY. TODAY IS GOING TO BE A NASTY DAY FOR YOU.

Based on the above statements, the People do not have sufficient evidence to charge the defendnat with the above crimes as there is no immediacy to the defendant's threat, neither is there any clarity on what the defendant is threatening in this matter.

For these reasons, the People decline to prosecute.



002538942

NYSCEF DOC. NO. 1

RECEIVED NYSCEF: 08/09/2018

Action to be taken by Arresting Officer:

Check for Warrant.

Signature of Complainant

Print Name of Complainant



Signature of Assistant DA

LEE, ANDREW J

Print Name of Assistant DA

Signature of Arresting Officer

Print Name, Shield, Command

Date: 10/27/2017 12:04



002538942

Index No. :

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ERNESTO RODRIGO,

Plaintiff,

-against-

THE CITY OF NEW YORK, MOISES RODRIGUEZ P.O. OF THE 46 PCT., SHIELD #8124, TAX ID #951164, OTHER CITY OF NEW YORK POLICE OFFICERS INVOLVED IN ARREST #B17654809 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON OCTOBER 26, 2017, AND NO OTHER DATE,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for